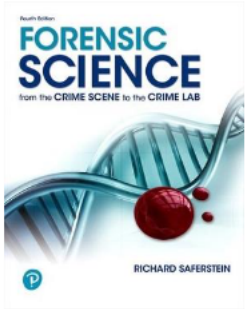
Innocence Project: the Case of Wilton Dedge

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Major: Criminal Justice
CRJ 1350-501: Introduction to Forensic Science



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Presentation Outline

- The Crime
- The Victim
- The Scene and Investigation
- The Evidence
- The Suspect(s)
- The Charge(s)
- The Trial
- The Conviction and Sentencing
- The Contributing Causes of the Wrongful Conviction
- The Exoneration
- Time Served
- Reactions
- The Real Perpetrator
- Call(s) for Action
- Conclusion
- References

The Crime

- At 4:00pm on December 8, 1981 in Canaveral Groves FL, a cosmetology student, returned to her family home after looking for employment.
- Her father, stepmother, and sister were not home.



(Mitsu Sato Academy, n.d.)

The Crime cont.

- As she was changing her clothes in her room, she heard a noise.
- When she turned, she faced a large tall man with a knife.
- He cut off her clothes and raped her vaginally and anally.
- During the assault, her attacker cut her all over her body.



(Lam, 2020)

The Victim

- The victim’s name is Jane Smith, a seventeen year-old.
- After the vicious assault, the perpetrator left.
- Jane then contacted her boyfriend, who took her to a hospital for treatment and for the preparation of a rape kit.



(Pokusay, n.d.)

The Victim cont.

- At the hospital, her clothes were collected as evidence and provided the police a description of her assailant.
- He was about six feet tall, and weighing between 160 and 200 pounds.
- And the assailant was big and muscular.



(LOVE PORTRAIT AND LOVE THE WORLD/ISTOCK, n.d.)

The Scene and Investigation

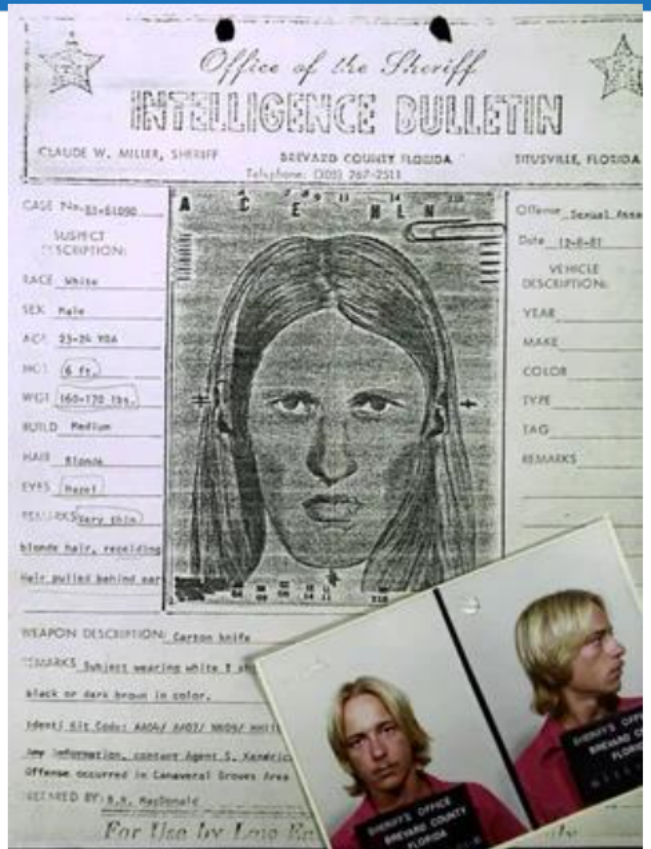
- The primary crime scene took place in the victim's room, in her family's home.
- Police recovered two pubic hairs from Jane's bed, the only physical evidence.
- Sperm was found on a swab in the rape kit, but the blood type was not determined.



(Hamid, 2008)

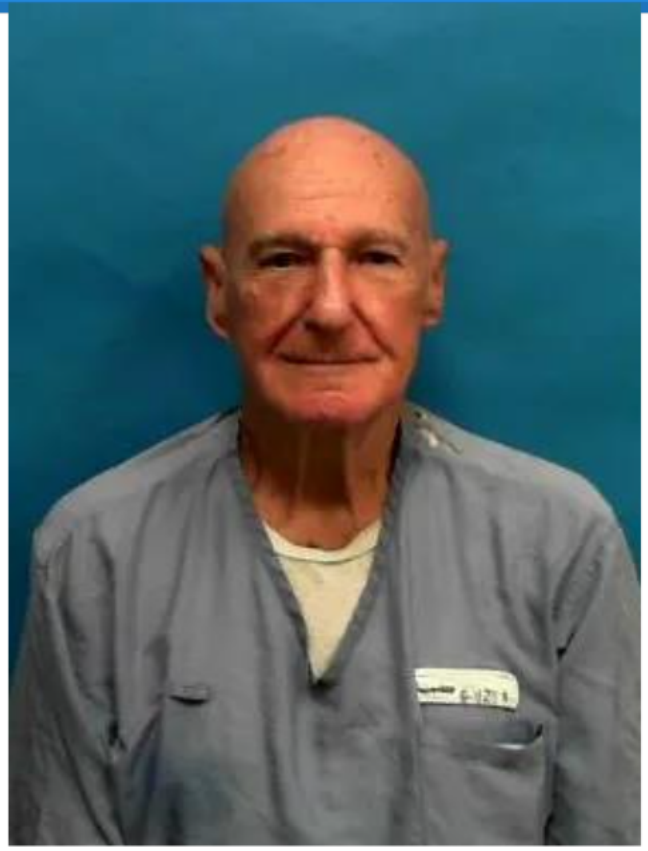
The Evidence

- Jane Smith as an eyewitness. A photo of a police sketch created by Ms. Smith description of the perpetrator.
- Description of attacker: “about six” feet tall,about 200 pounds, later 160 pounds, and “big, muscular.”
- The two pubic hairs taken from the crime scene for analysis.



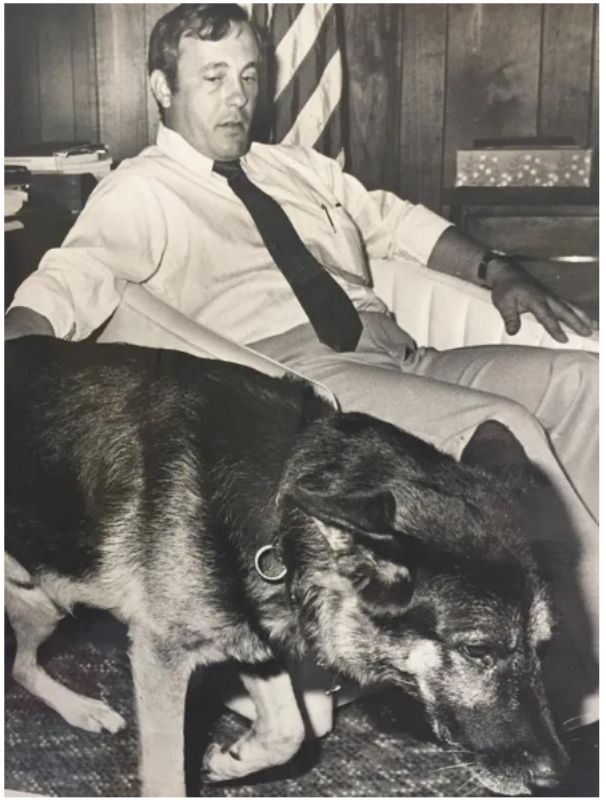
The Evidence cont.

- A testimony made by Clarence Zacke (right photo), a well-known snitch.
- Zacke claimed that Dedge confessed to the crime during their transportation in a prison van.
- “I just raped and cut some old hog” is what Dedge allegely said to Zacke.



The Evidence cont.

- Dog sniffing evidence presented by John Preston (right photo), a dog handler.
- Preston testified that his dog had received 540 hours of training at the Tom McGean School for Dogs.
- A “scent lineup” was conducted using Ms. Smith bedroom and dirty sheets.



The Suspect(s)

- Four days after the crime, the victim saw a man in a convenience store that resembled her attacker. Her sister identified the man as “Walter Hedge.”
- On January 8th 1982, the victim told investigators about the man and the police arrested Walter, Wilton Dedge’s brother.



The Suspect(s) cont.

- Walter Dedge was later released after Ms. Smith identified Wilton Dedge in a photo lineup.
- At that time, Wilton weighed 125 pounds and is 5’5″ tall.
- Several witnesses could place him at an auto garage he was working at the time of the crime.



“I knew I was innocent, so I knew it would get cleared up…I was raised to believe in the legal system. I knew it would get straightened out.” - *Wilton Dedge*

The Charge(s)

- Wilton Dedge was charged for Sexual battery, assault, and burglary in Florida state law.
- Sexual Battery (Rape)(4)(a) - A felony of the first degree, punishable by a term of years not exceeding life or as provided. A person 18 years of age or older who commits sexual battery upon a person 12 years of age or older but younger than 18 years of age without that person's consent





The Charge(s) cont.



- Assault (2) - A person who assaults another person commits a misdemeanor of the second degree. An "assault" is an intentional, unlawful threat by word or act to do violence to the person of another, coupled with an apparent ability to do so, and doing some act which creates a well-founded fear in such other person that such violence is imminent.
- Burglary(1)(a) - A felony of the first degree, punishable by imprisonment for a term of years not exceeding life imprisonment.For offenses committed on or before July 1, 2001, "burglary" means entering or remaining in a dwelling, a structure, or a conveyance with the intent to commit an offense.

The Trial

- The first trial began in September 1982, and lasted for eight days.The jury deliberated for four hours before pronouncing Dedge guilty of the rape and robbery. **He was sentenced for thirty years in prison.**
- During the trial, the Prosecution relied upon three things to prove Dedge's guilt:



1) the eyewitness testimony of Ms. Smith
2) the pubic hair analysis
3) the dog scent lineup

The Trial cont.

- The court ruled an appeal for a new trial to challenge the dog-scent evidence.
- During the second trial in August 1984, Preston was forced to admit inconsistencies during his cross-examination.
- Preston’s loss of credibility, outrageous claims and inconsistencies of scent evidence damaged the prosecution's case.



Court hearing. Barry Scheck, right, of the Innocence Project asks a witness questions at a hearing for Wilton Dedge, left, to determine whether he will be granted a new trial. *Tim Shortt, FLORIDA TODAY*

The Trial cont.

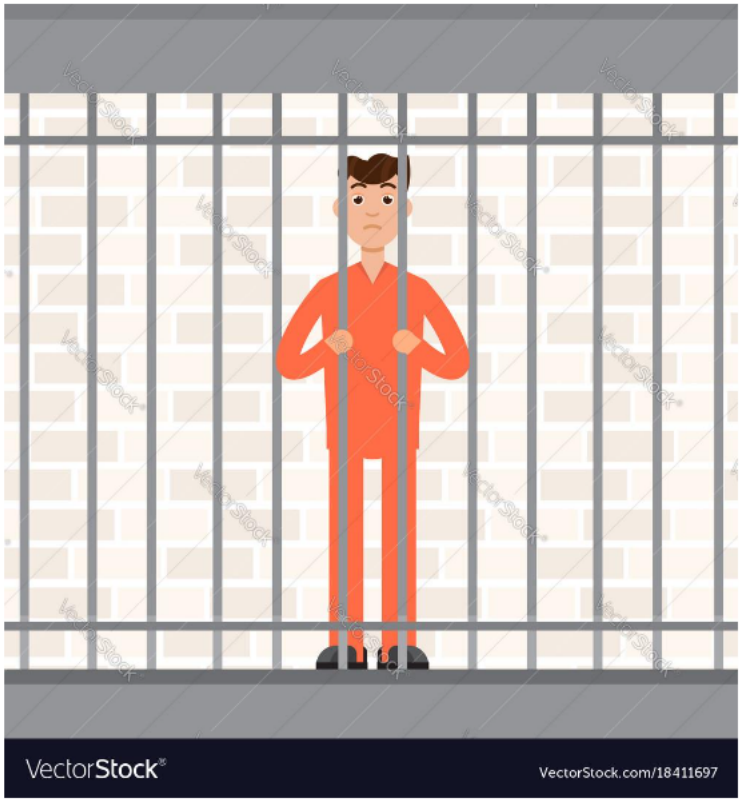
- The Prosecution revealed Clarence Zacke to testify against Dedge.
- Dedge testified that Zacke lied about his testimony regarding their conversation in the transport van.
- For seven hours the all-male jury reached the same verdict as the first trial: guilty.





The Conviction and Sentencing

- Since his arrest, Dedge maintained his innocence, but was convicted for Sexual Battery, Aggravated Battery, and Burglary in his second trial.
- **The judge gave Dedge a new sentence: life in prison at the age of 22 years**.



Contributing Causes of the Wrongful Conviction

- Contributing causes of Dedge's wrongful conviction include eyewitness misidentification, false testimony, invalidated scent evidence, and improper forensic hair analysis.



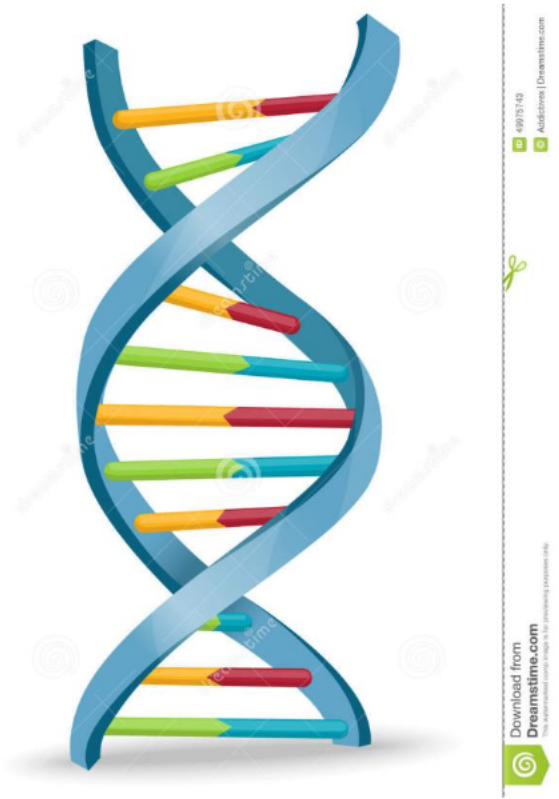
The Exoneration

- The Innocence Project agreed to take on Dedge's case in 1995.
- On June 16 2000, Judge Jacobus ordered to release the evidence to ReliaGene Technologies for DNA testing.
- **This was the first ruling of its kind in Florida history.**



The Exoneration cont.

- Due the degradation of the gential swabs from the rape kit, a mitochondrial DNA test was ordered for the pubic hair.
- In June 2001, the results were in: the pubic hair recovered at the crime scene did not belong to Dedge.



The Exoneration cont.

- Further testing was ordered by the court on the semen evidence recovered from the rape kit. Initial testing had yielded only two markers because the sample was degraded. Y chromosome STR testing was utilized in the final round of testing. The results excluded Dedge
- **Both pubic hair and semen tests proved Dedge's innocence.**



Time Served

- On August 12, 2004, the State of Florida released Wilton Dedge after ***twenty-two years*** of wrongful incarceration.





- -PUBLISHED CAPTION- -Malcolm Denemark, FLORIDA TODAY- - Free at last. Mary and Gary Dedge greet their son, Wilton, at the Brevard County Jail. Wilton Dedge was exonerated and released from jail in 2004 spending more than 22 years in prison for a rape that DNA evidence --originally used to convict him -- has now shown he did not commit.- -PHOTOGRAPHER's CAPTION- *Malcolm Denemark*

The Reactions

- Exoneree
  - Dedge, now 42, received $2 million and apologies from Florida Legislature as compensation for being in prison for 22 years.

"Honestly, there's nothing anybody could do to make up the 22 years...I've never had a face-to-face apology with any of the prosecutors...It would be nice if they would come to me. It doesn't have to be publicized"

- Their Family and Friends

"My faith in Wilton never wavered. I am proud to be his father, and I love him dearly...I think he's a better man today than when he went in prison." -Gary Dedge

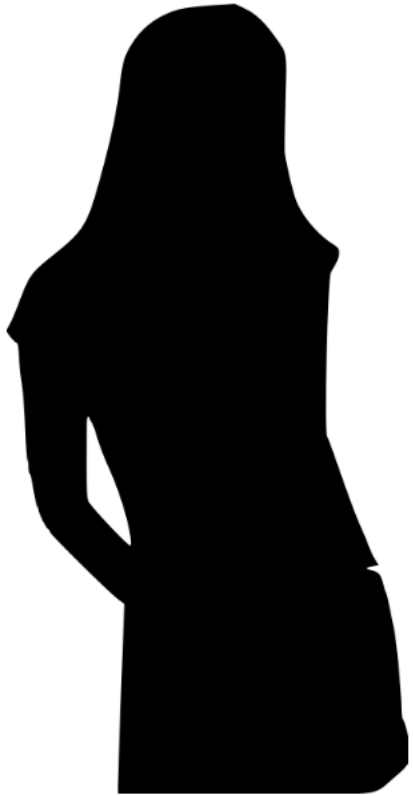


Wilton Dedge waves to members of the Florida House on Thursday after they passed a bill to compensate him with $2 million for being wrongfully convicted and imprisoned for 22 years. *Sarasota Herald-Tribune*

The Reactions cont.

- The Victim
  - According to Tampa Bay Times, Ms. Smith said she forgave Dedge and would not come between him and his release. But wouldn't help him get out unless there was beyond a doubt that Dedge didn't rape her.

"Could I possibly have put the wrong man behind bars for 20 years?" -(Jane Smith)



The Real Perpetrator

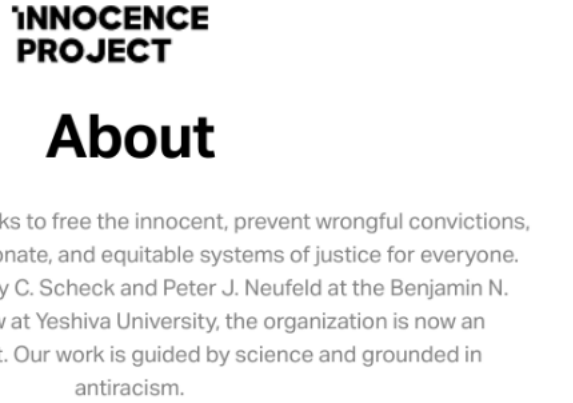
- Unfortunately, the real perpetrator has not been caught yet.

"I always thought if you're sick enough to do it, then you're sick enough not to worry about someone doing time for it." -Wilton Dedge



Call(s) for Action cont.

- To help prevent wrongful convictions, there needs to be more public awareness to this ongoing issue in our justice systems.
- Signing up to get involved and/or donating to the Innocence project can help others in similar cases like Wilton Dedge.



According to Prisonlegalnews.org, the Florida Legislature plans to establish a policy to compensate future victims of wrongful incarceration.

“We must do more for those who are wrongfully incarcerated" - State Rep. J.C. Planas, R-Miami.

In Conclusion

- He became the first inmate in Florida to have DNA testing on evidence used to convict.
- Wilton Dedge resides with his parents and is currently focusing on learning to be an adult. He believes it is best to live in the moment.



Wilton with Eddie Vedder of Pearl Jam (Innocence Project, 2018)

References

- A.R. Mays Construction. (2022). *Convenience Store Image*. https://www.armays.com/portfolio/fort-mojave-thalypo-convenience-store-fueling-station-3/
- BILL KACZOR THE ASSOCIATED PRESS, Sarasota Herald-Tribune. (2005, December 9). *For 22 lost years, $2 million*. Sarasota Herald-Tribune. Retrieved September 16, 2022, from https://eu.heraldtribune.com/story/news/2005/12/09/for-22-lost-years-2-million/28450565007/
- Cheng, A. C. (2017, June 17). *Photo of Police sketch*. Tallahassee Democrat. https://www.tallahassee.com/story/news/2017/06/27/new-laws-reduce-wrongful-convictions-and-address-state-compensation/428290001/
- *Florida Awards $2 Million to Wrongfully Convicted Man | Prison Legal News*. (n.d.). Retrieved October 7, 2022, from https://www.prisonlegalnews.org/news/2006/mar/15/florida-awards-2-million-to-wrongfully-convicted-man/

References cont.

- Hamid, Z. H. (2008). *Crime scene*. Wikipedia. https://en.wikipedia.org/wiki/File:Crime_Scene_NMCP.jpg
- Innocence Project. (2018, August 12). *Wilton pictured with Eddie Vedder of Pearl Jam.* Facebook. https://www.facebook.com/innocenceproject/photos/
- Lam, L. L. (2020). *Photo Illustration of a man holding a knife*. Channel News Asia. https://www.channelnewsasia.com/singapore/man-charged-threaten-girlfriend-knife-plan-marry-circuit-breaker-764401
- LaPETER, L. (2019, December 12). *21 years, 10 months, 23 days // FOR A CRIME HE DID NOT COMMIT // GUILTY UNTIL PROVEN INNOCENT*. Tampa Bay Times. Retrieved September 17, 2022, from https://www.tampabay.com/archive/2004/11/14/21-years-10-months-23-days-for-a-crime-he-did-not-commit-guilty-until-proven-innocent/

References cont.

- LOVE PORTRAIT AND LOVE THE WORLD/ISTOCK. (n.d.). *A woman in a hospital bed*. Newsweek. https://www.newsweek.com/man-slammed-not-visiting-girlfriend-hospital-anxiety-vial-reddit-1737806
- Merjian, A. M. (2009). ANATOMY OF A WRONGFUL CONVICTION: STATE v. DEDGE AND WHAT IT TELLS US ABOUT OUR FLAWED CRIMINAL JUSTICE SYSTEM. *University of Pennsylvania Journal of Law and Social Change*, *13* (2009-2010), 137–168. Retrieved September 16, 2022, from https://scholarship.law.upenn.edu/jlasc/vol13/iss2/1/
- MicrovOne/Getty Images/IStockphoto / IStockphoto. (2020, October). *Three Judges image*. KUER 90.1. https://www.kuer.org/politics-government/2020-10-20/how-to-judge-a-judge-understanding-judicial-retention-on-the-utah-ballot
- Mitsu Sato Academy. (n.d.). *Cosmetology student*. https://www.mitsusatohairacademy.com/cosmetology

References cont.

- Pokusay, A. P. (n.d.). *Crying girl with phone coloring vector illustration*. Dreamstime. https://www.dreamstime.com/crying-girl-phone-coloring-vector-illustration-isolated-image-white-background-comic-book-style-imitation-crying-girl-image119569411
- Torres, J. F. A. T. (2017, May 8). *Convicted: Murder on the Space Coast Season 2, Episode 2*. Florida Today. Retrieved October 1, 2022, from https://eu.floridatoday.com/story/news/crime/2017/03/19/convicted-murder-space-coast-season-2-episode-2/98689190/
- Torres, J. T. (2017, March 19). *Wilton Dedge arrested photo*. Florida Today. https://www.floridatoday.com/story/news/crime/2017/03/19/convicted-murder-space-coast-season-2-episode-2/98689190/
- Watt, S. (2022, June 5). *CASE CLOSED?* Orlando Weekly. Retrieved October 2, 2022, from https://www.orlandoweekly.com/news/case-closed-2259922

References cont.

- Wilson Center for Science and Justice at Duke Law. (2017, February 2). *Wilton Dedge*. Convicting the Innocent. Retrieved October 1, 2022, from https://convictingtheinnocent.com/exoneree/wilton-dedge/
- *Wilton Dedge Celebrates 15 Years of Freedom Today*. (2019, August 2). Innocence Project. Retrieved September 15, 2022, from https://innocenceproject.org/cases/wilton-dedge/